

25STCV20340 25STCV20340

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F14%2F2026

Source SHA-256: c32a310610fe144061bbfcae0c1bd47dc4b2276be612bfb601c46ae71672bd3d

Case Number: 25STCV20340 Hearing Date: July 14, 2026 Dept: 529

JANE DOE vs PARAMOUNT PICTURES

CORPORATION, et al.

plaintiff's motion for an order to proceed under doe
pseudonym

Date

of Hearing: July 14, 2026 Trial Date: None
set

Department: 529 Case No.: 25STCV20340

Moving Party: Plaintiff Jane Doe

Responding

Party: Defendants Paramount Pictures

Corporation, Paramount Global and Patrick Smith

BACKGROUND

On July 9, 2025, Plaintiff Jane Doe initiated the instant action against Paramount Pictures Corporation, Paramount Global and Patrick Smith for sexual harassment. Plaintiff alleges she began her employment with Paramount in 2017, and reported directly to Paramount's Vice President, Patrick Smith. Every day, Plaintiff alleges, Defendant Smith bombarded Plaintiff Doe with sexual compliments, comments, and advances as well as was verbally caustic, emotionally abusive, sexually predatory, aggressive, and

highly vindictive.

Plaintiff filed a Second Amended Complaint on October 6, 2025, asserting causes of action for (1) Sexual Harassment in Violation of FEHA; (2) Hostile Work Environment Based on Sexual Harassment; (3) Discrimination on the Basis of Sex/Gender in Violation of FEHA; (4) Retaliation in Violation of FEHA; (5) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of FEHA; (6) Negligent Retention; (7) Unfair Business Practices; and (8) Intentional Infliction of Emotional Distress.

On May 13, 2026, Plaintiff filed a Third Amended Complaint.

[Tentative] Ruling

Plaintiff Jane Doe's Motion for an Order to Proceed Under Doe Pseudonym is DENIED.

REQUEST
FOR JUDICIAL NOTICE

Defendants Paramount Pictures Corporation and Paramount Global requests this court take judicial notice of the Court's Order Denying Plaintiff's Second Motion for an Order to Proceed Under a Doe Pseudonym, filed February 13, 2026. (Exh. 1.) The court GRANTS the request for judicial notice. The court notes that while the court may take judicial notice of the document, the court may not take judicial notice of the truth of its contents. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

OBJECTIONS

Defendant Patrick Smith submits objections to the declaration of Jane Doe and Bryon Purcell. The court sustains objection Nos. 12, 17 and 19.

DISCUSSION

Plaintiff Jane Doe moves this court for an order permitting her to proceed under the pseudonym "Jane Doe" in all public filings and pretrial court proceedings and refrain from disclosing Plaintiff's legal name or other

personally identifying information in any public filing on the grounds this action involves allegations of repeated acts of sexual harassment and coercion by a powerful industry executive in Plaintiff's workplace over the course of several years. To the extent any existing filings contain Plaintiff's legal name or personally identifying information, Plaintiff requests such filings may be appropriately redacted or, if necessary, sealed consistent with the court's authority and the California Rules of Court.

A request to proceed under a pseudonym is subject to the same analysis as a motion to seal court records. (Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 111.) The sealing of court records is governed by California Rules of Court rules 2.550 and 2.551. (Mercury Interactive Corp. v. Klein (2007) 158 Cal.App.4th 60, 68.) The presumption of open access to court records does not apply to "records that are required to be kept confidential by law." (CRC rule 2.550(a)(3).) A party seeking to seal a court record or seeking to file a record under seal must do so by motion or application supported by a declaration showing facts justifying the record's sealing. (CRC rule 2.551(b)(1).) The court must apply the "overriding interest test" set forth in California Rules of Court, rule 2.550(d). Under this test, before court records can be sealed, the court must expressly find facts establishing that: "(1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest."

Plaintiff seeks to proceed in this action under the pseudonym "Jane Doe" in this action on the grounds the allegations in this instant matter require Plaintiff to describe highly sensitive, intimate, and graphic conduct that goes to the core of her bodily autonomy, mental health, and livelihood, and thus fall squarely within the category of sensitive and highly personal matters for which courts routinely permit pseudonymity. Plaintiff contends public disclosure of Plaintiff's identity in connection with these allegations would expose her to further trauma, humiliation, stigma, and professional harm within a close-knit industry due to the excessive notoriety of the instant matter, and would risk deterring her, and other survivors of workplace sexual assault and coercion, from bringing full, candid claims against their assailants.

Defendants Paramount Pictures and Patrick Smith oppose the motion.

Defendant Paramount Pictures cites to *Roe v. Smith* (2025) 116

Cal.App.5th 227 to support their contention. Under *Roe*, litigating by

pseudonym is permitted “only in the rarest of circumstances,” and a plaintiff’s conclusory fears of reputational and professional harm—even in a case involving

allegations of sexual harassment—do not overcome the public’s substantial and presumptive interest in knowing who invokes its courts. The *Roe* court explicitly

stated “conclusory fears of reputational and economic injury do not outweigh the public’s substantial and presumptive interest in disclosure.” (*Roe*, *supra*,

116 Cal.App.5th at 244.) The court explained that “[f]ear of harm to one’s reputation applies to a great number of cases,” and that “this justification ...

would swallow the rule and cannot be squared with the judicial refrain that proceeding under a pseudonym should only be allowed in the ‘rare’ case.” (*Id.*)

Paramount contends this is exactly what Plaintiff’s declaration offers. Moreover, the declaration provides no threat of physical harm or retaliation from anyone.

Instead, she offers speculation about psychological harm, stating that she is in “mental health treatment,” that her “understanding” is that “control over

[her] own story” is important to her recovery, and that disclosure would “set back [her] rehabilitation.” (*Doe Decl.*, ¶¶ 6-7.) Going over the factors,

Defendants argue Plaintiff has failed to establish an overriding interest that overcomes the right of public access. Defendant contends the sensitive subject

matter is not enough. Moreover, the publicity surrounding the case weighs against anonymity, a defendant’s public statements do not create an overriding

interest in a plaintiff’s anonymity, Paramount knowing the identity actually “cuts both ways”, and Plaintiff’s consideration of continuing the lawsuit if

her identity is disclosed is not sufficient grounds as a party to a civil case “is entitled to a fair trial, not a private one.”

Defendant Patrick Smith similarly argues^[1]

the case here does not involve highly sensitive information about Plaintiff or any known risk of safety concerns or retaliation if Plaintiff’s identity is

made public as required by *Doe v. Smith*. Defendant Smith notes he

would be prejudiced if Plaintiff proceeded under a pseudonym on the grounds it would negatively impact Defendants’ discovery efforts, as he may not be able to

speak to potential witnesses without the risk of Plaintiff’s identity becoming public; anonymous proceedings will necessarily lead to increased complexity and

costs for Defendant on motions to seal; and as the courts have aptly noted, “[r]equiring a defendant to publicly defend himself against allegations of sexual assault,

while the plaintiff retains her anonymity, is prejudicial,” and the public’s

ordinary interest in “knowing the underlying facts of a litigation, including the identities of litigants,” is “magnified because Doe has made her allegations against a public figure.” (Doe v. Alexander, 2025 U.S. Dist. LEXIS 109240, at *13.)

Here, the court finds Plaintiff Jane Doe has failed to establish that this general privacy interest outweighs the public's right of access. While Plaintiff has alleged she was a victim of unrelenting sexual harassment, exploitation, and retaliation, Jane Doe's evidentiary showing is insufficient. The party seeking anonymity bears the burden to show the harms they would face if not allowed to proceed using a pseudonym. (Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 112.) Here, Plaintiff's declaration primarily attests to the stigma and reputational harm that public disclosure of her identity would cause in her industry. (Doe Decl. ¶15.) However, she does not identify any threat of physical harm or retaliation and Paramount already knows her identity. While she also attests that public disclosure of the facts of the case will adversely affect her mental health treatment, she provides no declaration from a medical professional corroborating that fear. Moreover, plaintiff controls what information she places in the public record, at least until trial when these proceedings will be open to the public. She can avoid exposing herself to much of what she fears by simply not placing the text messages and other materials that she finds so offensive in any of the pre-trial pleadings. Moreover, the eventual trial of this case will be open to the public, as are all civil trial proceedings. Plaintiff must be prepared for the fact that the details of this case will likely be publicly aired at that time, regardless of whether they are embarrassing to plaintiff or defendants. As a result, allowing Plaintiff to proceed pseudonymously during the pleading state would not protect her against any danger that actually could be avoided. As noted in the Roe decision, “wholly conclusory fears of reputational and economic injury do not outweigh the public's substantial and presumptive interest in disclosure.” (Roe v. Smith, supra, 116 Cal.App.5th at p. 244.)

Based on the foregoing, Plaintiff Jane Doe's Motion for an Order to Proceed Under Doe Pseudonym is DENIED.

[1] The court briefly notes Defendant Smith's contention that Plaintiff's memorandum exceeds

the page limit. The court will exercise its discretion in considering Plaintiff's memorandum in its entirety in ruling on this motion. (CRC Rule 3.1113(g).)